

THE SUPREME COURT OF PAKISTAN
(REVIEW JURISDICTION)

PRESENT:

JUSTICE SHAHID BILAL HASSAN
JUSTICE SHAKEEL AHMAD

C.R.P. No.410/2023 IN C.A No. 310 of 2021

[Against order dated 26.04.2023 passed by this Court in Civil Appeal No.310 of 2023]

Fazeelat Nasreen and another

...Review Petitioner(s)

Versus

Maqsood Begum and others

...Respondent(s)

For the Petitioner(s) : Ch. Afrasiab Khan, ASC

For Respondent(s) No.1-9 : Ch. Ali Muhammad, ASC

For Pakistan Bar Council : Mr. Rehman Ullah, ASC
(via video link Peshawar)

For Punjab Bar Council : Mr. Muhammad Ahmad Qayyum, ASC

Date of Hearing : 10th of March, 2026

JUDGMENT

SHAHID BILAL HASSAN-J: Through this petition filed under Article 188 of the Constitution of Pakistan, 1973, read with Order XXVI Rule 1 of the Supreme Court Rules, 1980, review has been sought of the judgment dated 26.04.2023 passed by this Court in Civil Appeal No.310 of 2021, whereby the appeal of the present petitioners was dismissed and the impugned judgment of the High Court, therein, was upheld.

2. The facts necessary for the decision of the instant review petition are as such that the present controversy pertains to immovable property comprising Khasra Nos. 621 and 623. The respondents instituted a suit on 02.11.2005 challenging mutation No.452 of 1989 and a registered sale deed dated 04.09.1991 alongwith subsequent mutations. The review petitioners (the “**petitioners**”), however, claim title on the basis of an earlier registered sale deed dated 22.02.1978 followed by lawful mutations and

subsequent transfers in their favour, asserting that they are bona fide purchasers for value in possession.

3. The learned trial Court as well as the first appellate Court, upon proper appreciation of evidence, concurrently dismissed the suit, inter alia, on the ground that the same was barred by limitation and devoid of merits. The High Court, however, in exercise of revisional jurisdiction, interfered with such concurrent findings and while setting aside the concurrent judgments and decrees passed by the Courts below, decreed the suit in favour of the respondents/plaintiffs. The said view was maintained by this Court through the judgment order sought to be reviewed.

4. Learned counsel for the petitioners contended that the order sought to be reviewed suffers from errors apparent on the face of the record inasmuch as the suit filed by the respondents was hopelessly barred by limitation, which aspect, being mandatory under section 3 of the Limitation Act, 1908, was not properly considered. He further submitted that the documents in question were duly registered, thereby constituting notice to the world at large, and the respondents could not, after decades of inaction, challenge settled transactions. It was next argued that the learned trial Court and the appellate Court had concurrently returned findings of fact after proper appreciation of evidence, which could not have been disturbed by the High Court in exercise of revisional jurisdiction under section 115 of the Code of Civil Procedure, 1908. Lastly, it was contended that non-consideration of these settled principles of law has resulted in grave miscarriage of justice, thus constituting valid grounds for review.

5. Conversely, learned counsel for the respondents supported the order sought to be reviewed and contended that no ground for review, within the meaning of Article 188 of the Constitution, has been made out. It was argued that the petitioners are, in substance, seeking reappraisal of the case on merits, which is not permissible in review jurisdiction. He further submitted that the High Court had rightly exercised its jurisdiction in the facts and circumstances of the case and that the findings recorded therein do not suffer from any jurisdictional defect or legal infirmity warranting interference. Learned counsel, thus, prayed that the review petition be dismissed.

6. We have heard learned counsel for the parties at considerable length and have perused the record with their able assistance.

7. The foremost question requiring consideration is with regard to limitation. Section 3 of the Limitation Act, 1908 mandates that every suit instituted after the prescribed period shall be dismissed, even if limitation is not set up as a defence. The record reflects that the transactions sought to be challenged pertain to the years 1978, 1989 and 1991, whereas the suit was instituted in 2005 after decades of inaction. The law on the subject is settled beyond cavil that unexplained delay in challenging a mutation renders the claim legally untenable. In Muhammad Miskeen and others v. Noor Muhammad and others (2011 SCMR 808) this Court held:

“The transaction of exchange was entered into in the year 1937; whereas the suit for declaration and possession was instituted on 26-3-1994... Miandad remained satisfied and silent for 53 years... therefore, the suit... was hopelessly barred by time.”

Likewise, in Muhammad Hussain and others v. Muhammad Shafi and others (2008 SCMR 230) it was observed:

“The mutation was attested on 15-1-1943 which remained unchallenged till 1990 when the appellants got up from a deep and unexplained slumber and filed a suit for declaration after 47 years...”

Similarly, in Ghulam Haider and others v. Wali Muhammad and others (2008 SCMR 1425) this Court held that a suit filed nineteen years after the mutation was hopelessly time-barred. The underlying philosophy of limitation was elaborately explained by this Court in Atta Muhammad v. Maula Bakhsh (2007 SCMR 1446) in the following terms:

“The law of limitation provides an element of certainty in the conduct of human affairs. Statutes of limitation and prescription are statutes of peace and repose... Whoever wishes to dispute this presumption must do so within that period; otherwise his rights, if any, will be forfeited as a penalty for his neglect.”

In view of the above settled law, the suit filed by the respondents after an inordinate and unexplained delay was clearly barred by time and liable to be dismissed under Section 3 of the Limitation Act, 1908. This aspect, though fundamental, was not adverted to in its true perspective in the order sought to be reviewed.

8. It is also a well settled principle of law that long-standing entries in the revenue record ought not to be unsettled lightly, particularly where they have remained unquestioned for a considerable period and rights have subsequently accrued on their basis. In Waris Khan and 18 others v. Col. Humayun Shah and 41 others (PLD 1994 SC 336), this Court observed that where revenue entries are very old,

considerations of laches, limitation and even questions of prescriptive title become relevant, and the jurisdiction to disturb such entries through summary processes may itself be open to objection. The principle was reiterated in Mst. Grana through legal heirs v. Sahib Kamala Bibi (PLD 2014 SC 167), wherein it was held that the law of limitation assumes decisive significance when the conduct of the claimant reflects acquiescence, particularly where third-party interests have intervened in the property. The combined effect of these authorities is that challenges to long-standing mutation entries, especially after prolonged inaction and where third-party rights have been created, must be viewed with great circumspection and ordinarily ought not to be entertained.

9. Equally significant is the legal effect of registration of documents. It is well settled that registration constitutes notice to the public at large. In Abbas Ali Shah and others v. Ghulam Ali and another (2004 SCMR 1342), this Court held:

“The document which is registered under Registration Act, 1908 acquires the status of public document and general presumption of notice is attached with a registered document from the date of its registration...”

Similarly, in Ghulam Sarwar and others v. Qazi Muhammad Bakhsh and others (2012 SCMR 935), it was observed:

“We would also like to observe that registration of agreement to sell under the Registration Act, 1908 was in itself a notice to general public.”

In the present case, the documents in question were duly registered decades prior to the institution of the suit. The respondents, therefore, were deemed to have notice of the same, and their belated challenge cannot be sustained in law.

10. Another important facet relates to the scope of revisional jurisdiction. In the present case, the learned High Court, while exercising revisional jurisdiction, reassessed the evidence and substituted its own conclusions in place of the concurrent findings recorded by the Courts below without identifying any misreading or non-reading of evidence, nor pointing out any material illegality or perversity in the conclusions drawn by the Courts below. Such an approach is plainly inconsistent with the well-settled limits of

revisional jurisdiction. The law in this regard is by now firmly settled¹, it has been consistently held that there is a difference between the misreading, non-reading and misappreciation of the evidence, therefore, the scope of the appellate and revisional jurisdiction must not be confused and care must be taken for interference in revisional jurisdiction only in the cases in which the order passed or a judgment rendered by a subordinate Court is found perverse or suffering from a jurisdictional error or the defect of misreading or non-reading of evidence and the conclusion drawn is contrary to law.

11. In the case of Shahbaz Gul and others v. Muhammad Younas Khan and others (2020 SCMR 867), this Court held that where two interpretations of the evidence are possible, the appraisal of facts made by the Courts below should not be interfered with by the High Court in exercise of revisional jurisdiction under section 115, C.P.C., and the view adopted by the trial and appellate Courts must prevail. In Ahmad Nawaz Khan v. Muhammad Jaffar Khan and others (2010 SCMR 984), it was observed that the High Court has very limited jurisdiction to interfere with concurrent conclusions of fact. Likewise, in Cantonment Board through Executive Officer, Cantt. Board, Rawalpindi v. Ikhtlaq Ahmed and others (2014 SCMR 161), it was held that revisional jurisdiction is an exceptional supervisory power meant for correction of jurisdictional defects and not for reappraisal of evidence. In Atiq-ur-Rehman v. Muhammad Amin (PLD 2006 SC 309), this Court held that revisional jurisdiction is confined to cases involving misreading or non-reading of evidence, jurisdictional error, or illegality having a material effect on the outcome of the case, and that mere possibility of another view is no ground for interference. Similarly, in Sultan Muhammad and another v. Muhammad Qasim and others (2010 SCMR 1630), it was held that concurrent findings of fact, if free from misreading, non-reading, or material illegality, are not open to challenge in revisional jurisdiction. In Salamat Ali v. Muhammad Din (PLJ 2023 SC 8), it was reiterated that a revisional Court cannot upset findings of fact unless they suffer from perversity or misreading/non-reading of evidence, nor can it substitute its own view merely because it considers it more plausible. Further, in Mst.

¹ Mst. Zaitoon Begum v. Nazar Hussain (2014 SCMR 1469), Muhammad Farid Khan v. Muhammad Ibrahim (2017 SCMR 679), Muhammad Sarwar v. Hashmal Khan (PLD 2022 SC 13) and Mst. Zarsheda v. Nobat Khan (PLD 2022 SC 21)

Farzana Zia v. Mst. Saadia Andaleeb (2024 SCMR 916), this Court held that concurrent findings, if based on proper appreciation of evidence, cannot be disturbed unless shown to be legally flawed, perverse, or resulting in miscarriage of justice, and the High Court must refrain from reappraising evidence to substitute its own conclusions.

12. In the case at hand, the learned trial Court, after proper appreciation of the entire evidence on record, returned findings which were duly upheld by the learned appellate Court. No misreading or non-reading of evidence has been pointed out in the said concurrent findings. However, the High Court, in exercise of revisional jurisdiction, reassessed the evidence and substituted its own conclusions, which is clearly beyond the scope of such jurisdiction and contrary to settled law, the interference was thus wholly unwarranted and without jurisdiction. This vital aspect of the matter has been overlooked in the judgment sought to be reviewed.

13. Now advertent to the scope of review, it is by now well settled that review jurisdiction can be invoked where an error apparent on the face of the record exists or where the judgment has been rendered per incuriam². Very recently, this Court, in Gul Tiaz Khan Marwat v. Registrar Peshawar High Court (2026 SCMR 287), has held:

“a reviewable ground would essentially be one where the decision was per incuriam or where error is so evident that it is floating on the surface of the record, having substantial impact on the final outcome of the case...”

14. In the present case, the non-consideration of mandatory provisions of law relating to limitation, the settled presumption attached to registered documents, and the settled limits of revisional jurisdiction, in the judgement sought to be reviewed, constitutes an error apparent on the face of the record, which has materially affected the outcome of the case.

15. For the foregoing reasons, this review petition is allowed. The judgment dated 26.04.2023 passed by this Court in Civil Appeal No.310 of 2021 and the judgement dated 04.03.2021 passed by the High in C.R.No.3021 of 2014 are set aside, and the judgments and

² *Government of Punjab v. Aamir Zahoor ul Haq (PLD 2016 Supreme Court 421)* and *Nadia Naz v. The President of Islamic Republic of Pakistan (PLD 2023 Supreme Court 588)*

decrees passed by the learned trial Court and the first appellate Court are restored.

16. Before parting with this judgment, it is necessary to observe that the present case itself reflects serious deficiencies in the drafting of pleadings before the trial Court and in this regard, it is noteworthy that this Court vide order dated 24.10.2023³ had observed that civil pleadings, in a large number of cases, do not conform to the mandatory requirements of the Code of Civil Procedure, 1908, (the “**CPC/Code**”) particularly Orders VI, VII and VIII. Essential particulars, including proper prayer, cause of action, jurisdiction, valuation, court-fee and verification under Order VI Rule 15, are frequently omitted. Handwritten pleadings, often in Urdu, are at times illegible and do not adhere to basic structural requirements. It was further observed that such defects are not duly scrutinized or rectified by the trial courts.

17. The Court had also expressed concern regarding the prevalent practice of pleadings being drafted by petition-writers rather than duly enrolled advocates under the Legal Practitioners and Bar Councils Act, 1973, and notices were accordingly issued to the Pakistan Bar Council and Provincial Bar Councils.

18. In view of the recurring nature of these deficiencies, and before proceeding further, we consider it necessary to examine the legal framework under the Code, governing pleadings, and to lay down

³ “3. Whilst hearing this matter reference was made to the plaint, which, like many others, does not appear to conform to the requirements of the Civil Procedure Code, 1908 (‘the Code’) as it lacks a prayer clause at the end of the plaint; the prayer is incorporated in the title together with submissions. We have noted that pleadings also often do not comply with the provisions of Orders VII and VIII of the Code; are not verified in accordance with Order VI, rule 15 of the Code; the mandated list of legal heirs not provided; paragraphs with regard to territorial and pecuniary jurisdiction are often absent; cause of action and when it had occurred, not stated and valuation, applicable court fees and jurisdiction not mentioned.

4. Though pleadings may be in Urdu, however, when handwritten, often due care is not taken, and sometimes they are also difficult to read; requirements as to spacing and numbering of paragraphs is also not followed.

5. Judges too overlook the abovementioned defects and shortcomings and do not have the same redressed, to conform to the requirements of the law.

6. By the time matters come up to this Court a decade or more has elapsed, and the consequences of the defects/shortcomings in the pleadings are suffered by the parties. And, when these are pointed out, we are informed that petition writers, and not advocates, draft pleadings. Whether petition writers are authorized to draft pleadings under The Legal Practitioners and Bar Councils Act, 1973 and The Pakistan Legal Practitioners and Bar Councils Rules, 1976 also needs consideration.

7. In order to address the abovementioned perennial problems, it would be appropriate to issue notices to the Pakistan Bar Council and all provincial Bar Councils so that they can assist us in redressing them. They may also submit written proposals in this regard. It is clarified that the Bar Councils are called upon to only assist with regard to the observations made in paragraphs 3 to 6 above.”

certain guiding principles to ensure compliance with the mandate of law and to promote uniformity in civil adjudication.

19. The Code governs civil adjudication and is designed to facilitate the fair, orderly, and effective determination of civil disputes. Its provisions are not merely technical, but serve to ensure that litigation proceeds on clearly defined issues in accordance with law. Its provisions ensure that litigation proceeds on clearly defined issues in accordance with law. Thus, the Code, read as a whole, is intended not to create impediments in the path of justice, but to facilitate the fair, orderly, and efficacious determination of civil controversies in accordance with law.⁴

20. In Civil proceedings pleadings occupy a foundational place in civil litigation and their drafting is a serious professional exercise requiring legal skill, sound knowledge of substantive and procedural law, practical experience, and careful judgment. They are not a mere clerical formality to be prepared casually or without due application of mind. Counsel, therefore, bears a responsibility not only towards the client, but also towards the Court and the profession, to ensure that the pleadings are properly structured, legally precise, and factually complete. The importance of pleadings lies not merely in setting out rival claims; rather, they define with clarity and precision the matters in controversy and thereby enable the Court to identify the real dispute requiring adjudication. In this sense, pleadings constitute the legal boundaries of the *lis*, and a party is bound by its averments and cannot ordinarily travel beyond them unless the pleadings are amended with the leave of the Court.⁵

21. The trial Court bears a proactive duty to scrutinize pleadings at the stage of institution to ensure compliance with statutory requirements, including proper particulars, verification, and jurisdiction. It must not permit parties to travel beyond their pleadings and is obligated to reject or require correction of defective pleadings in accordance with law. In this perspective, order VI, C.P.C. lays down the general law relating to pleadings and governs both the

⁴ Province of Punjab through the District Collector, Bhakkar V. Muhammad Chiragh and others **PLD 2026 SC 53**; Muhammad Naeem Khan and another V. Muqadas Khan (Decd) through L.Rs.and another **PLD 2022 SC 99**; Kathiawar Cooperative Housing Society Ltd. V. Macca Masjid Trust and others **2009 SMCR 574**

⁵ Sardar Muhammad Naseem Khan v. Returning officer, pp-12 and others **2015 SCMR 1698**

plaint and the written statement.⁶ A pleading is ‘a formal document in which a party to a legal proceeding (esp. a civil law suit) sets forth or responds to allegations, claim, denials, or defences’.⁷ Its scheme requires that every pleading contain only a concise statement of the material facts on which the party relies for its claim or defence, and not the evidence by which such facts are to be proved. The pleading is to be structured in numbered paragraphs⁸ and, where applicable, the prescribed forms in Appendix A or forms of a like character are to be followed.⁹ The First Schedule to the Code includes several appendices, among which Appendix A deals specifically with pleadings by providing standard forms and illustrative formats for drafting complaints and written statements. These forms are not meant to be followed rigidly; rather, they serve as practical guides to help ensure that pleadings are properly organized, contain all necessary particulars, and comply with the requirements of Orders VI and VII of the Code.

22. The Code further mandates that where a party relies upon allegations of misrepresentation, fraud, breach of trust, willful default, or undue influence, the necessary particulars must be specifically pleaded¹⁰, including dates and items where required. It is well settled that mere general or vague allegations, however strongly expressed, are not sufficient; the party alleging fraud must distinctly plead and prove all material particulars constituting such allegation.¹¹ It also regulates the pleading of conditions precedent¹², denial of contracts¹³, the effect of documents¹⁴, malice¹⁵, notice¹⁶, implied contracts or relations¹⁷, and matters presumed by law.¹⁸ Importantly, it prohibits a party from departing from its earlier pleadings except by way of lawful amendment.¹⁹ The Order further

⁶ Or. VI Rule 1

⁷ Black's Law Dictionary 12th Edition

⁸ Or. VI Rule 2

⁹ Or. VI Rule 3

¹⁰ Or. VI Rule 4

¹¹ Aamir Afzal and another V. S. Akmal (deceased) through L.Rs. and 2 others **2024 SCMR 1649**, Messrs Lanvin Traders, Karachi V. Presiding Officer, Banking Court no.2, Karachi and others **2013 SCMR 1419**

¹² Or. VI Rule 6

¹³ Or. VI Rule 8

¹⁴ Or. VI Rule 9

¹⁵ Or. VI Rule 10

¹⁶ Or. VI Rule 11

¹⁷ Or. VI Rule 12

¹⁸ Or. VI Rule 13

¹⁹ Or. VI Rule 7, Hafiz Qari Abdul Fateh v. Ms. Urooj Fatima **2024 SCMR 1709**, **2023 SCMR 890**, **2019 SCMR 74**

mandates that pleadings be signed by the party and the pleader²⁰, and be verified on oath or solemn affirmation with reference to the numbered paragraphs, stating what is verified from personal knowledge and what is based on information believed to be true²¹. The requirement that every pleading be signed by the party is intended, as far as possible, to prevent disputes regarding whether the suit was instituted with the plaintiff's knowledge and authority, and to ensure that nothing is done on behalf of the party in a manner prejudicial to his interest. Although the provisions of Order VI, Rule 15 are not always treated as mandatory in the strict sense, and a person may verify the pleadings on his own knowledge without necessarily referring to information received and believed to be true, the requirement of verification nonetheless serves an important procedural purpose. It signifies the party's acceptance of the pleadings and lends authenticity to the case presented, thereby assisting the Court in being satisfied, at least prima facie, that the claim is genuine and fit to be entertained.²² However, omission to sign pleadings does not, by itself, render the plaint a nullity, for signing, verification, and drafting of the plaint in a particular manner are regarded as matters of procedure and the relevant provisions are therefore to be construed liberally rather than strictly. Once cured, the amendment ordinarily relates back to the date of institution of the suit. Thus, the omission to sign or verify pleadings is not, in itself, fatal to the case; rather, it constitutes a procedural defect which the Court may permit to be cured in the interest of deciding the matter on merits, instead of allowing technicalities to impede the course of justice.²³ It also confers power upon the Court to strike out unnecessary or scandalous matter²⁴ and to permit amendment of pleadings at any stage where necessary for determining the real questions in controversy²⁵, subject to compliance within the time allowed by the Court.

²⁰ Or. VI Rule 14

²¹ Or. VI Rule 15

²² **2004 CLC 432 (AJ & K), NLR 2011 Civ. 69 (SC)**

²³ **1981 SCMR 687, PLD 1974 SC 134, PLD 1963 SC 382,**

²⁴ Or. VI Rule 16

²⁵ Or. VI Rule 17

23. The act of presenting a plaint to the court under Section 26²⁶ read with rule 1 of Order IV²⁷ is called the institution of suit. By presenting the plaint, a plaintiff sets the machinery of the court in motion for deciding upon his claim and the act of presenting a written statement under Rule 1 of Order VIII²⁸ constitutes the defence of the suit.²⁹ Order VII, Rule 1³⁰ prescribes the essential particulars that must be contained in a plaint. With respect to these particulars, a plaint may broadly be divided into three parts: first, the heading, containing the name of the Court and the names and descriptions of the parties, as contemplated by Rule 1(a) to (d); second, the body of the plaint, comprising the facts constituting the cause of action, the facts showing jurisdiction, and the statements relating to relinquishment, valuation, and court-fee, as reflected in Rule 1(e), (f), (h), and (i); and third, the relief clause, as provided in Rule 1(g).

24. The second part of a plaint is its body, wherein the plaintiff sets out his claim³¹, along with such other matters as he is legally required to state³². It is drafted in the form of a narrative and is divided into short, numbered paragraphs, each ordinarily containing one material fact only.³³ The body of the plaint may broadly be understood as consisting of two parts, namely, the formal portion and the substantial portion. The formal portion includes the statements

²⁶ 26. **Institution of suit.** Every suit shall be instituted by presentation of a plaint or in such other manner as may be prescribed.

²⁷ 1. **Suit to be commenced by plaint.** (1) Every suit shall be instituted by presenting a plaint to the Court or such officer as it appoints in this behalf.

²⁸ 1. **Written statement.** The defendant may, and, if so required by the Court, shall, at or before the first hearing or within such time as the Court may permit, present a written statement of his defence.

²⁹ S.D.O./A.M., Hasht Nagri Sub-Division, PESCO, Peshawar and others V. Khawazan Zad **PLD 2023 SC 174**; Muhammad Siddiqje and another V. Syed Zawar Hussain Abidi and 9 others **PLD 1976 SC 572**

³⁰ 1. **Particulars to be contained in plaint.**— The plaint shall contain the following particulars:—

- a) the name of the Court in which the suit is brought;
- b) the name, description and place of residence of the plaintiff;
- c) the name, description and place of residence of the defendant, so far as they can be ascertained;
- d) where the plaintiff or the defendant is a minor or a person of unsound mind, a statement to that effect;
- e) the facts constituting the cause of action and when it arose;
- f) the facts showing that the Court has jurisdiction;
- g) the relief which the plaintiff claims;
- h) where the plaintiff has allowed a set-off or relinquished a portion of his claim, the amount so allowed or relinquished; and
- i) a statement of the value of the subject-matter of the suit for the purposes of jurisdiction and of court-fees so far as the case admits.

³¹ Or. VII Rule 1(e) and (h)

³² Or VII, Rule 1(e), (f), and (i).

³³ Or. VI Rule 2

required by law regarding the accrual of the cause of action, the facts establishing the Court's jurisdiction, the valuation of the subject-matter for the purposes of jurisdiction and court-fee, and, where applicable, a statement that any party is a minor or a person of unsound mind. It also includes, where relevant, a statement that the plaintiff sues in a representative capacity and has taken the necessary steps to institute the suit in that character. Ordinarily, each of these particulars ought to be stated in a separate paragraph of the plaint. However, since the forms in Appendix A to the Code of Civil Procedure generally combine the cause of action and jurisdiction in one paragraph, and provision of CPC requires the use of those forms or forms of a like nature³⁴, those two particulars may appropriately be pleaded together in a single paragraph.

25. We now proceed to examine, step by step, the statements forming part of the formal portion. The foremost statement emerging from the above is that relating to the facts constituting the **cause of action**. Cause of action means every material, essential, and foundational fact which gives the plaintiff the right to sue and which must be alleged in the plaint and proved, if traversed, in order to entitle him to a decree. It comprises the whole bundle of facts necessary for the plaintiff to establish before he can succeed in the suit. In other words, it includes every fact which the defendant would have a right to traverse and which the plaintiff must prove to sustain his claim. It is to be ascertained from the averments contained in the plaint as a whole, and not from the defence that may be set up by the defendant. It has no relation to the character of the defence, nor does it depend upon the nature of the relief claimed.³⁵ The importance of properly pleading a cause of action, therefore, is not merely procedural but goes to the root of maintainability, as will be presently demonstrated.

26. The next important statement is that which sets out the facts establishing the **Court's jurisdiction**. The plaint must contain clear and specific facts showing that the Court has jurisdiction to entertain the suit. The law requires that the plaint must disclose clear and specific facts establishing jurisdiction, it is not enough merely to

³⁴ Or. VI, Rule 3

³⁵ PLD 2000 Kar. 214, 2003 MLD 1222, PLJ 2008 SC 1051, 2011 MLD 639, Ch. Muhammad Siddique and another V. Mst. Faiz Mai and others PLD 2012 SC 211

assert, in a vague or formal manner, that the Court has jurisdiction; rather, the plaint must disclose the facts on the basis of which such jurisdiction is invoked. Where any special or statutory jurisdiction is relied upon, the facts attracting such jurisdiction must also be expressly pleaded. If such averments are absent, the plaint is defective and ordinarily requires amendment; however, where jurisdiction is otherwise prima facie discernible from the plaint, omission of a separate jurisdiction clause may be treated as a curable defect. It is as a cardinal principle of civil procedure, that no evidence can be led in respect of facts not pleaded, and the parties are strictly bound by the case set up in their pleadings. This rule is not merely technical in nature but goes to the root of a fair trial, as it ensures that each party is fully aware of the case it is required to meet and is not taken by surprise. A party cannot be permitted to adduce evidence on matters not pleaded, and that jurisdictional facts must be expressly, clearly, and specifically set out in the plaint³⁶. In the absence of such foundational averments, the plaint is rendered defective and cannot form a lawful basis for adjudication. The requirement of pleading jurisdiction is, therefore, not a mere procedural formality but a substantive and indispensable prerequisite for the maintainability of the suit. Any adjudication undertaken in the absence of properly pleaded jurisdictional facts would be without lawful authority, as jurisdiction cannot be assumed, inferred, or conferred by consent, but must arise strictly from the pleadings and the law applicable thereto.

27. Jurisdiction of the Court is generally of three kinds, namely, territorial jurisdiction, pecuniary jurisdiction, and subject-matter jurisdiction. The plaintiff is required to plead facts showing all three, wherever applicable. Territorial jurisdiction must be shown by stating where the cause of action, wholly or in part, arose, where the defendant resides or carries on business, or where the property in dispute is situated.³⁷ For ease of understanding, the provision ordinarily may be divided into two parts: first, where the controversy relates to immovable property, the suit must be instituted where the property is situated³⁸; second, in other cases, the suit is to be

³⁶Tilak Raj vs. Prithi Pal Singh **AIR 1961 J&K 61**

³⁷ Sections 16, 17, 19 and 20 CPC

³⁸ Section 16, 17 and 19 CPC

instituted where the defendant actually and voluntarily resides, carries on business, or personally works for gain.³⁹

28. At the same time, all civil courts possess pecuniary jurisdiction to hear cases within prescribed limits, irrespective of whether the subject matter concerns immovable property or otherwise⁴⁰. In this context, the jurisdiction to be exercised in original civil suits shall be determined by the High Court.⁴¹ Similarly, the Court of the District Judge shall exercise original civil jurisdiction without any pecuniary limitation.⁴² However, a pecuniary limit is prescribed for the District Court when hearing appeals from the Civil Judge.⁴³ The question then arises as to how the valuation of a suit is to be determined; in this regard, the Suits Valuation Act becomes applicable. Valuation for the purposes of jurisdiction is necessary to determine whether the suit falls within the pecuniary competence of the Court and, in some cases, to determine the proper appellate forum and process-fee. The plaintiff must state the true and proper value of the subject-matter and not an arbitrary or fanciful valuation. In ordinary cases where ad valorem court-fee is payable, the valuation for jurisdiction is generally the same as that for court-fee. However, in certain classes of suits, particularly those whose subject-matter does not admit of satisfactory monetary valuation, the value for jurisdiction may be governed by the Suits Valuation Act and the rules framed thereunder by the High Courts. Where no such rules exist, the plaintiff may state his own valuation, though such valuation remains open to objection and scrutiny by the Court. If the suit is undervalued or overvalued, the Court may inquire into the matter and direct correction. Where incorrect valuation affects the forum, the plaint may be returned for presentation before the proper Court. In determining valuation, the Court must have regard to the real substance of the claim.

29. The determination of pecuniary jurisdiction is intrinsically and inextricably linked with the valuation of the suit as disclosed in the plaint, and constitutes a foundational element in the assumption of jurisdiction by a civil court. It is a settled principle that the forum of adjudication is determined at the threshold on the basis of the

³⁹ Section 20 CPC

⁴⁰ Section 6 CPC

⁴¹ Section 9 Civil Court Ordinance 1962

⁴² Section 7 Civil Court Ordinance 1962

⁴³ Section 18 Civil Court Ordinance 1962

valuation assigned by the plaintiff, subject, however, to judicial scrutiny. The valuation for purposes of court-fee ordinarily governs the valuation for jurisdiction, thereby underscoring the centrality of the plaintiff's valuation in determining the competence of the court⁴⁴. At the same time, the law does not permit arbitrary, fanciful, or illusory valuation. It has also been observed by the Supreme Court of India⁴⁵ that where objective standards or definite materials are available, the plaintiff cannot whimsically assign a valuation, and the Court is not only empowered but duty-bound to examine and correct a valuation that is manifestly unreasonable or demonstratively undervalued. Likewise, jurisdiction is to be determined on the basis of the valuation as stated in the plaint and not on the eventual outcome of the suit, thereby reinforcing the principle that jurisdiction must be ascertained at the inception of proceedings⁴⁶. The cumulative effect of these principles is that while the plaintiff has a degree of latitude in valuing the relief, such discretion is neither absolute nor unfettered; it is circumscribed by the requirement of reasonableness and is subject to correction by the Court where it is exercised arbitrarily, as any defect in valuation directly impacts the jurisdiction of the Court and may vitiate the entire proceedings.

30. With regard to court fees, the Court Fees Act becomes applicable. Section 7 lays down the principles for computation of court fees in various suits, including money claims, immovable property disputes, declaratory suits, injunctions, specific performance, and landlord-tenant matters. It further empowers courts to determine correct valuation, require additional fee where undervalued, and grant refunds in appropriate cases. The Act also contains procedural provisions regarding valuation disputes, refund of excess fee, exemption of certain documents, process fees, and mode of levy through stamps. Special provisions are included for probate and letters of administration, ensuring accurate valuation of estate. Overall, the Act operates in conjunction with the Suits Valuation Act, ensuring that court fee valuation and pecuniary jurisdiction are properly aligned and regulated.⁴⁷

⁴⁴ Sathappa Chettiar Vs. Ramanathan Chettiar (**AIR 1958 SC 245**)

⁴⁵ Commercial Aviation and Travel Company and Ors. vs. Vimla Pannalal (**1988**) **3 SCC 423**

⁴⁶ Super Candles and Ors. vs. Mahabir Candle Works and Ors **AIR 1997 Gau 57**

⁴⁷ The Court Fees Act, 1870

31. In this regard, the plaint must distinctly state the value of the subject-matter of the suit for the purposes of court-fee as well as jurisdiction. A plaint which omits such valuation is defective, and where the subject-matter admits of valuation, failure to state it may render the plaint not maintainable in the eye of law. Since the two valuations are different in character, they must be specifically stated, even though in many cases they may be the same. While both valuations may be set out in one paragraph, each must be clearly identifiable.

32. Although the relevant provisions in this regard may be directory in nature, such deficiencies nonetheless give rise to serious procedural complications, particularly at the appellate stage. For instance, the paragraph relating to jurisdiction and valuation for purposes of court-fees is often not properly drafted and is left in a vague form with the words, حسب حکم عدالت کورٹ فیس چسپاں کر دی جائے گی. If such a defect remains unnoticed and undecided not only by the trial Court but also by the first appellate Court, and it later transpires that the plaint ought originally to have been valued beyond the pecuniary jurisdiction of the trial Court as well as that of the first appellate Court, the consequence may be that the entire proceedings before both Courts are rendered without lawful authority. In such a situation, the proceedings before the trial Court and the appellate Court may stand vitiated and be liable to be nullified on account of want of jurisdiction. It is, therefore, incumbent upon Courts of first instance to examine, at the very inception of the proceedings, whether the suit has been properly valued for purposes of jurisdiction and court-fee, and to ensure strict compliance with the law in this regard.

33. The other portion of the body of the plaint is called substantial portion. The substantial portion of a plaint must set out all material facts constituting the cause of action⁴⁸, stated with necessary particulars, so as to disclose a complete and enforceable claim. For the constitution of a cause of action, certain facts must be pleaded in the plaint in accordance with the statutory framework⁴⁹; moreover, this Court has, from time to time, held depending on the facts and circumstances, that certain facts are *sine qua non* for rendering the plaintiff's claim legally maintainable. Likewise, it is also settled

⁴⁸ Or. VII Rule 1(e)

⁴⁹ Or. VII Rule 4, 6, 8, 10 to 12 and Or. VII Rule 2, Rule 3 & Rule 5

principle of law that parties are bound by their pleadings, and no evidence can be considered on a fact not specifically pleaded in the plaint or written statement. A party cannot improve or alter its case beyond what has been originally set up, as the rule of *secundum allegata et probata* confines proof strictly to the facts alleged. Pleadings constitute the foundation of the dispute, on the basis of which issues are framed and evidence is led; consequently, evidence must remain within the scope of such issues. Any material beyond the pleadings cannot be relied upon to establish a new case or claim relief. Failure to plead essential or material facts is fatal, and a party is precluded from introducing new grounds or shifting its stance at a later stage of proceedings.⁵⁰ The distinction between “material facts” and “particulars” constitutes the very foundation of the law of pleadings and lies at the heart of a fair and orderly trial. Material facts are those primary, essential, and foundational facts which must be pleaded to disclose a complete cause of action or defence, whereas particulars are the details which merely amplify, refine, or explain such facts. The omission of even a single material fact is fatal, for it renders the cause of action incomplete and the pleading liable to rejection at the threshold. It is for this reason that courts have consistently held that pleadings must contain all material facts constituting the claim or defence, and nothing beyond them; evidence by which such facts are to be proved must not be pleaded⁵¹. The doctrine further carries the necessary consequence that no evidence can be looked into on facts not pleaded, nor can a party be permitted to build a case outside its pleadings or improve upon it at a later stage. Any such attempt would not only prejudice the opposite party but

⁵⁰ Taj Wali Khan V. Hukam Khan (Decd.) through L.Rs **2025 SCMR 231**; Hafiz Qari Abdul Fateh through L.Rs V. Ms. Urooj Fatima and others **2024 SCMR 1709**; Kauser Parveen and another V. Kasb Bank and others **2023 SCMR 890**; Muhammad Ghaffar (deceased) through LR's and others V. Arif Muhammad **2023 SCMR 344**; Muhammad Yaqoob V. Mst. Sardaran **PLD 2020 SC 338**; Muhammad Iqbal V. Mehboob Alam **2015 SCMR 21**; Abrar Ahmad V. Irshad Ahmed **PLD 2014 SC 331**; Messrs Essa Engineering Company Pvt. Ltd. And another V. Pakistan Telecommunication Company Limited and another **2014 SCMR 922**; Malik Muhammad Faisal and another V. State Life Insurance Corporation through Chairman and 2 others **2008 SCMR 456**; Muhammad Hafeez and another V. District Judge, Karachi East and another **2008 SCMR 398**; Major (retd.) Barkat Ali and others V. Qaim Din and others" **2006 SCMR 562**; Binyameen and 3 others V. Chaudhry Hakim and another" **1996 SCMR 336**; Government of West Pakistan V. Haji Muhammad **PLD 1976 SC 469**; Messrs Choudhary Brothers Ltd., Sialkot V. The Jaranwala Central Co-operative Bank Ltd., Jaranwala" **1968 SCMR 804** Estrella Rubber v. Dass Estates (P) Lt., **(2001) 8 SCC 97**

⁵¹ Sopan Sukhdeo Sable v. Assistant Charity Commissioner **(2004) 3 SCC 137**; Virender Nath Gautam v. Satpal Singh **(2007) 3 SCC 617**.

would also strike at the very root of the adversarial system, which is premised upon fairness, certainty, and procedural discipline. The law, therefore, insists with strictness that all material facts must be specifically pleaded, failing which the claim itself becomes legally untenable and liable to be dismissed.

34. Another important particular, which requires consideration by the Court, is that the plaint must set out the grounds on which exemption from the law of limitation is claimed.⁵² The law of limitation⁵³ is a consolidating statute intended to prescribe definite time limits within which legal remedies must be pursued, thereby ensuring certainty, finality, and discipline in the administration of justice. The scheme of the Act is mandatory in nature, and under section 3, every suit, appeal, or application instituted beyond the prescribed period is liable to dismissal irrespective of whether limitation is pleaded as a defence. The law of limitation does not extinguish the substantive right in ordinary cases, but bars the remedy, subject to specific statutory exceptions. At the same time, the Act incorporates equitable considerations by providing for extension or exclusion of time in circumstances such as legal disability, fraud, acknowledgment, or bona fide prosecution of proceedings in a court lacking jurisdiction. The provisions must be construed strictly, yet applied in a manner that advances justice, ensuring that while stale claims are barred, genuine claims are not defeated on mere technicalities where sufficient cause or statutory protection is established. In this regard, where a claim is prima facie barred by limitation, the plaintiff(s) must expressly or impliedly disclose in the plaint the grounds of exemption⁵⁴; failing which, the plaint is liable to rejection.⁵⁵ The structure of the law is founded upon the legal maxims that delay defeats equity, time and tide wait for none, and law helps the vigilant, not the indolent. Although the law does not require a rigid or technical statement, the plaint must clearly indicate facts bringing the case within a recognized exception, and it is advisable to plead such grounds specifically and distinctly.

35. The relief clause forms an integral and decisive component of a plaint, as it delineates the precise remedy sought and thereby

⁵² Or. VII Rule 6 CPC

⁵³ The Limitation Act, 1908

⁵⁴ S. 4 to 25 Limitation Act

⁵⁵ Or. VII Rule 11(d) CPC

determines the scope of adjudication before the Court. It is well settled that relief must be specifically, clearly, and unambiguously pleaded, and no relief can ordinarily be granted on the basis of an oral prayer or on grounds not founded in the pleadings. Where a plaintiff claims multiple or alternative reliefs, such claims must be distinctly stated; however, reliefs that are mutually inconsistent or destructive of each other cannot be granted. A plaintiff is bound by his pleadings and cannot subsequently set up a new case or seek relief on a different cause of action not disclosed in the plaint. Equally, omission to claim a relief arising from the same cause of action may operate as a bar to subsequent litigation, unless leave of the Court has been expressly obtained, and any attempt to introduce such relief by amendment may be declined if barred by limitation. At the same time, the Court, in exercise of its powers under Order VII Rule 7 of the Code of Civil Procedure, 1908, is competent to mould the relief in accordance with the facts proved, and may grant appropriate or lesser relief even if not specifically prayed, provided it is consistent with the pleadings and does not prejudice the opposite party. The governing principle remains that while procedural technicalities should not defeat substantive justice, no relief can be granted on facts not pleaded or in a manner inconsistent with the case set up by the plaintiff. It is also a settled principle of civil jurisprudence that no relief can be granted on a case not founded in the pleadings. The Court is confined to adjudicating upon the case set up by the parties and cannot travel beyond it. The view of the Supreme Court of India also aligns with this approach which has also consistently held that a decision cannot be based on grounds outside the pleadings and, in the absence of amendment, no alternative case can be entertained⁵⁶. This principle has also been reiterated with the observation that no amount of evidence can be looked into on a plea not put forward in the pleadings and that grant of relief without pleadings or prayer would result in miscarriage of justice. It has further been clarified that while a court may, in appropriate cases, grant a lesser or ancillary relief flowing from the pleadings, it cannot grant a relief altogether outside or inconsistent with the prayer on the assumption that it may determine what relief ought to be granted irrespective of the case set up by the

⁵⁶ Trojan and Co. Ltd. vs. N.N. Nagappa Chettiar **AIR 1953 SC 235**

plaintiff. The jurisdiction of a civil court to grant relief is, therefore, circumscribed by the pleadings, the issues framed, and the opportunity afforded to the parties to contest the case so set up⁵⁷.

36. A written statement constitutes the formal defence submitted by the defendant in response to the averments set out in the plaint.⁵⁸ It is procedural in nature and serves to facilitate the Court in adjudicating the *lis* in accordance with the respective rights of the parties. The requirements of a written statement mandate that all pleas of defence be specifically raised therein in accordance with the general rules of pleadings.⁵⁹

37. The body of the written statement may be structured into three parts: first, the statement of new facts⁶⁰; second, the denial of the plaintiff's claim⁶¹; and third, the particulars of any set-off in money suits⁶², where applicable. The law requires the defendant to clearly and specifically state all **grounds of defence**, whether of fact or law, in the written statement so as to avoid surprise to the plaintiff and ensure a fair opportunity to meet the case through evidence. Similarly, the law requires that a defendant must specifically and clearly deny each allegation of fact in the plaint which he does not admit. Such denial must be precise, direct, and address the substance of the allegation; a vague, general, or evasive denial is not recognised in law and is treated as an admission of the fact alleged. Merely stating that an allegation is "denied" or "not admitted" without giving reasons or addressing the core issue is insufficient. Where a defendant challenges a fact, he must also state the grounds of such denial for instance, if the validity of a notice or transaction is disputed, the specific basis of illegality must be pleaded. The law emphasizes that each material averment must be specifically traversed, either expressly or by necessary implication, failing which it shall be deemed to have been admitted, and no further proof is required. Evasive denial, therefore, carries serious consequences, as it amounts to implied admission and precludes the defendant from later disputing such facts. However, this requirement applies primarily where the

⁵⁷ Bachhaj Nahar vs. Nilima Mandal **(2008) 17 SCC 491**

⁵⁸ S.D.O./A.M., Hasht Nagri Sub-Division, PESCO, Peshawar and others V. Khawazan Zad **PLD 2023 SC 174**; Muhammad Siddiqje and another V. Syed Zawar Hussain Abidi and 9 others **PLD 1976 SC 572**

⁵⁹ Or. VI CPC

⁶⁰ Or. VIII Rule 2 CPC

⁶¹ Or. VIII Rule 3 to 5 CPC

⁶² Or. VIII Rule 6

plaint contains clear and specific allegations; where allegations themselves are vague, strict application may not arise. Overall, the principle of specific denial ensures clarity in pleadings, narrows the scope of dispute, and prevents parties from raising ambiguous or belated objections.⁶³

38. The defendant is bound by these pleadings and cannot ordinarily raise new pleas at a later stage, particularly those involving disputed facts, unless proper amendment is allowed, issues are framed, and parties are given an opportunity to adduce evidence. Any plea not raised in the written statement cannot generally be entertained in arguments, appeal, or revision, and the Court is confined to deciding matters arising from the pleadings. Failure to specifically deny material averments may amount to admission, while pleas not pursued may be deemed abandoned; however, the defendant is not required to restate legal consequences of admitted facts. Overall, the rule ensures precision in pleadings, limits the scope of dispute, and facilitates fair adjudication.

39. The law also requires both plaintiff and defendant to furnish, at the time of institution of suit or filing of written statement, a list of their prospective legal representatives along with particulars of a nominated person responsible to inform the Court in the event of their death and to facilitate substitution proceedings.⁶⁴ The provision is designed to ensure procedural continuity and expeditious adjudication by pre-identifying legal heirs, thereby reducing delay and uncertainty in bringing them on record. Its scope extends throughout the pendency of the proceedings, including appeal, revision, and review, and permits amendment of such list or change of nominee at any stage. The requirement, however, is directory in nature; non-compliance does not render the plaint or written statement invalid nor is it fatal to the proceedings, with certain exceptions.⁶⁵ The Court retains authority, even suo motu, to implead legal representatives upon being apprised of the death of a party, and may proceed with the matter where no prejudice is caused.⁶⁶ Nonetheless, failure to comply may invite procedural complications, and a legal representative not impleaded at trial cannot subsequently introduce

⁶³ **PLD 2012 SC 211, PLD 2011 SC 119, 2003 SCMR 1864**

⁶⁴ Or. VII Rule 26, Or. VIII Rule 13 & Or. XXII Rules 3 and 4, C.P.C

⁶⁵ **2007 SCMR 1193**

⁶⁶ **PLD 1989 SC 755**

a case inconsistent with the stance already taken by the deceased party.

40. In this framework, the advocate bears a pivotal responsibility to draft pleadings with precision, integrity, and legal acumen, ensuring that all material facts are properly pleaded, unnecessary or scandalous matter is avoided, and the real controversy is effectively articulated. Through careful drafting, the advocate not only safeguards the client's interests but also facilitates the Court in arriving at a just and reasoned determination, thereby upholding the rule of law and the efficacy of the adjudicatory process. In the modern world, advocates play a foundational role in the administration of justice, serving as officers of the court⁶⁷ and as vital actors in the delivery of fair, impartial, and effective justice.

41. Insofar as the concept of petition-writers is concerned, they represent a historical institution developed to facilitate access to justice for litigants unfamiliar with legal procedures, particularly within the colonial judicial framework of the subcontinent. Their role, as previously regulated under statutory provisions including the Punjab Civil Court Ordinance, 1962⁶⁸ and the High Court Rules and Orders⁶⁹, was confined to the clerical preparation of petitions and other documents based on instructions of litigants, without rendering legal advice or undertaking representation before courts. A clear distinction has always been maintained between petition-writers and advocates, the latter being exclusively entitled to act and plead under the Legal Practitioners and Bar Councils Act, 1973. Although Section 20 of the relevant Ordinance continues to confer rule-making authority for regulating petition-writers, the absence of operative rules has rendered the statutory framework largely dormant, creating a regulatory vacuum. In such circumstances, any continued functioning of petition-writers can only be regarded as de facto and not strictly traceable to an enforceable statutory regime, thereby

⁶⁷ **2012 SCMR 399**

⁶⁸ **Section. 20. Provisions regarding petition-writers.** The High Court, in consultation with the Board of Revenue, West Pakistan, may make rules consistent with this Ordinance and any other enactment for the time being in force-

(a) declaring what persons shall be permitted to act as petition-writers in Courts;

(b) regulating the issue of licences to such persons, the conduct of business by them and the scale of fees to be charged by them; and

(c) determining the authority by which breaches of such rules shall be investigated and the penalties which may be imposed.

⁶⁹ Volume I, Chapter-17

necessitating consideration by the competent authorities for formulation of an appropriate regulatory framework.

42. In view of the foregoing, and keeping in perspective the persistent non-compliance of pleadings with the mandatory procedural requirements of the Civil Procedure Code, 1908, it has become necessary to lay down the following guiding principles for the courts of first instance (trial courts). On presentation or receipt of a plaint, the Court shall examine it with particular reference to the following:

- i. Whether the plaint contains all the particulars specified in CPC⁷⁰, and conforms to the other rules of pleadings⁷¹ and rules made by the High Court thereunder;
- ii. Whether, there is, prima facie, any non-joinder or mis-joinder of parties, or mis-joinder of causes of action⁷²;
- iii. Whether any of the parties to the suit are minors and, if so, whether they are properly represented;⁷³
- iv. Whether the plaint is duly signed and verified;⁷⁴
- v. Whether the suit is within the jurisdiction of the Court or must be returned for presentation to proper Court;⁷⁵
- vi. Whether the plaint is liable to be rejected for any of the reasons;⁷⁶
- vii. Whether the documents attached to the plaint (if any) are accompanied by lists in the prescribed form and are in order;⁷⁷
- viii. Whether the plaintiff has filed a proceeding containing his address for service during the litigation;⁷⁸
- ix. Whether the plaint is accompanied by a statement giving the names and addresses of the legal representatives and of the person who in the event of death of the plaintiff shall intimate such fact to the Court;⁷⁹

⁷⁰ Or. VII, Rule 1

⁷¹ Or. VI and VII CPC

⁷² Or. I CPC

⁷³ Or. XXXII CPC

⁷⁴ Or. VI Rule 14 & 15 CPC

⁷⁵ Or. VII Rule 10 CPC

⁷⁶ Or. VII Rule 11 CPC

⁷⁷ Or. VII Rule 14 CPC

⁷⁸ Or VII Rule 19 CPC

⁷⁹ Or. VII Rule 26 CPC

- x. Whether the plaint is accompanied by as many copies on plain paper of the plaint as there are defendants plus two extra copies and draft forms of summons and fees for the service thereof;⁸⁰
 - xi. Whether the suit is not barred by time, and if, prima facie, it is so barred, whether plaint shows the ground on which exemption is claimed; ⁸¹
 - xii. Whether the plaint is accompanied by as many registered envelopes (acknowledgment due) as the number of defendants for simultaneous service of the summons through post;⁸²
 - xiii. Whether the plaint contains a proper and specific relief clause setting out the full relief claimed, and whether the requisite court-fee has been correctly affixed in accordance with law.
43. Similarly, upon submission of the written statement, the Court shall examine it with reference to the following principles:
- i. The written statement shall ordinarily be filed at or before the first hearing, and adjournments for this purpose shall be granted only for sufficient cause. The period for filing shall not ordinarily exceed thirty days, and failure to comply shall entail consequences in accordance with law.
 - ii. The written statement shall be accompanied by all documents in the possession or power of the defendant on which reliance is placed, along with a list of documents not so in possession but intended to be relied upon. The defendant shall also furnish an address for service during the pendency of proceedings.
 - iii. The written statement must conform to the general rules of pleadings as contained in Orders VI and VIII of the Code of Civil Procedure, 1908.
 - iv. In cases involving multiple defendants, separate written statements shall ordinarily be filed unless the defence is identical.
 - v. The Court shall ensure that distinct or conflicting defences are not improperly combined or obscured in a joint pleading.
 - vi. Where a set-off is claimed, it must relate to a definite and ascertained monetary sum, be between the same parties in the

⁸⁰ Or. VII Rule 9 (1A) CPC

⁸¹ Or. VII Rule 6 CPC

⁸² Or. V Rule 10-A

same capacity, and the written statement shall, to that extent, be duly stamped as a plaint.

vii. The Court may, where necessary, require replication or additional pleadings for the purpose of clarifying the controversy and properly framing issues.

44. In view of the deficiencies noted in civil pleadings and the recurring non-compliance with mandatory procedural requirements, it is considered necessary to involve the Bar Councils in addressing this systemic issue. The Bar Councils may consider the formulation and issuance of standardized or model formats for plaints, written statements, and other essential pleadings. While such formats cannot substitute the application of legal mind required in each case, they may serve as guiding templates to ensure compliance with basic legal requirements, proper structuring, and inclusion of all necessary particulars. This would not only promote uniformity and clarity in pleadings but also assist younger members of the Bar in developing sound drafting practices.

45. We may also observe that the issues highlighted in the present case, particularly concerning the drafting of pleadings and compliance with the mandatory requirements of the Code, merit consideration in legal education. It would be beneficial if such principles are incorporated and emphasized in the teaching of civil procedure and legal drafting modules at the level of law colleges, so as to equip future members of the Bar with the requisite skills at the threshold of their professional careers.

46. For effective implementation of the present guidelines, it is appropriate that this order be circulated to all District & Sessions Judges, who shall ensure its dissemination to all Civil Judges under their administrative control. A copy shall also be forwarded to all concerned Bar Associations to apprise members of the Bar of the procedural requirements and guidelines relating to pleadings, so as to secure uniform compliance across the province. The District Judiciary shall monitor compliance of these directions in letter and spirit, and necessary administrative measures may be adopted to ensure that procedural discipline is maintained. These steps are intended to promote uniformity, improve the quality of pleadings, and facilitate the efficient administration of civil justice.

47. It is equally imperative to recognize that the responsibility in this regard is shared by both the Bench and the Bar. While the courts must ensure vigilant scrutiny and enforcement of procedural law, the advocates, as officers of the Court, are under a corresponding duty to present pleadings that are legally sound, properly structured, and compliant with statutory mandates. Only through such coordinated effort can the object of achieving fair, expeditious, and effective justice be realized.

48. Before parting with this judgment, we would like to place on record our appreciation for the valuable assistance rendered by Mr. Awais Rehmat, Research Officer, Supreme Court of Pakistan, and Mr. Haseeb Ahmed Randhawa, Judicial Law Clerk, Supreme Court of Pakistan. Their exceptional research, diligence, and contributions in this case have been of considerable assistance and have meaningfully supported the qualitative delivery of this judgment.

JUDGE

JUDGE

Islamabad, the
10th of March, 2026
'APPROVED FOR REPORTING'
M.A. Hassan